



CHAPTER 16.

An Act for the acquisition of certain land, near the National Gallery in London, and for purposes connected therewith. A.D. 1901.
—
[17th August 1901.]

WHEREAS it is expedient that the Commissioners of Works (in this Act called the Commissioners) should be empowered to acquire certain lands and buildings near the National Gallery, and situated in the parish of Saint Martin-in-the-Fields, in the county of London :

And whereas those lands and buildings cannot be acquired without the authority of Parliament :

And whereas duplicate plans (in this Act referred to as the deposited plans) describing the situation of the land proposed to be acquired, with the houses and buildings thereon, with a book of reference thereto (in this Act referred to as the deposited book of reference), containing the names of the owners and lessees, or reputed owners and lessees, and of the occupiers thereof, have been deposited with the clerk of the peace for the county of London :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The Commissioners may purchase and acquire for the purposes of this Act all or any of the lands delineated on the deposited plans and described in the deposited book of reference. Power to purchase land.

2. For the purpose of the purchase and acquisition of land under this Act the Lands Clauses Acts (except so much thereof as relates to the purchase and taking of lands otherwise than by agreement) shall, subject to the provisions of this Act, be incorporated with this Act with the following exceptions and modifications :— Incorporation of Lands Clauses Acts.

(a.) The provisions relating to the sale of superfluous land and access to the special Act and section one hundred and thirty-three of the Lands Clauses Consolidation Act 1845 (relating to land tax and poor rate), shall not be incorporated with this Act : 8 & 9 Vict. c. 18.

(b.) In the construction of this Act, and of the incorporated Acts, this Act shall be deemed to be the "special Act," and the

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Commissioners shall be deemed to be the "promoters of the undertaking":

(c.) The bond required by section eighty-five of the Lands Clauses Consolidation Act, 1845, shall be under the common seal of the Commissioners, and shall be sufficient without the addition of the sureties mentioned in that section:

(d.) All claims for compensation made upon the Commissioners under this Act, or any Act incorporated herewith, shall, if the person claiming has no greater interest in the land in respect of which compensation is claimed, than as tenant from year to year, or as a leaseholder for any term of which not more than eighteen months remain unexpired at the time at which the claim is made, be determined in manner provided by section one hundred and twenty-one of the Lands Clauses Consolidation Act, 1845.

Land tax.

3.—(1.) Any land tax assessed on the first day of January one thousand nine hundred and one on any part of the land acquired by the Commissioners of Works for the purposes of this Act shall, as from the date of acquisition, be deemed to have been redeemed at the price and in accordance with the conditions provided by the Finance Act, 1896, and the Land Tax Acts as therein defined, and after the date of acquisition no sum shall be assessed or charged in respect of land tax on any part of the land so acquired.

59 & 60 Vict.
c. 28.

(2.) The Commissioners of Inland Revenue shall grant a certificate of exoneration from assessment to land tax of the lands so acquired, and that certificate shall be registered by the officer appointed for the registry of contracts for the redemption of land tax.

Extinction of
rights of way
and other
easements.

4.—(1.) All rights of way, rights of laying down or of continuing any pipes, sewers, or drains, on, through, or under any of the land acquired by the Commissioners under the provisions of this Act, and all other rights and easements in or relating to that land, shall be extinguished, and all the soil of those ways, and the property in the pipes, sewers, and drains, shall vest in the Commissioners.

(2.) Provided that any persons may recover from the Commissioners such compensation (if any) as they may be entitled to under any of the provisions of the Lands Clauses Acts for any rights or property of which they may be deprived in pursuance of this section, and the amount of that compensation shall be determined in manner provided by the Lands Clauses Acts as modified for the purpose of their incorporation with this Act.

Saving for
County
Council.

5. Nothing in this Act shall affect any rights or jurisdiction of the London County Council or the Westminster City Council in relation to any sewers, drains, or watercourses.

Power to enter
on lands.

6. The Commissioners and their surveyors, officers, and workmen may at all reasonable time in the daytime, on giving twenty-four hours' notice in writing, enter on any of the land which the

Commissioners are authorised to acquire under this Act for the A.D. 1901.
purpose of surveying or valuing the land.

7.—(1.) Where, in the removal or pulling down of any buildings or in raising or lowering the ground of any street or way for the purpose of this Act, it is necessary to raise, sink, or otherwise alter the position relatively to the surface of the ground of any pipe, wire, or other apparatus, laid down or used by any gas, water, or electricity company, or connected with any house or building for the supply of gas, water, or electricity,

Protection of works of gas, water, and electricity companies.

- (a) one month's notice shall be given to the company previously to the commencement of any such work; and
- (b) the work shall be executed to the reasonable satisfaction of the engineer of the company, or in case of difference of an engineer to be selected by the Board of Trade; and
- (c) every such work shall be so executed as to cause as little inconvenience as circumstances will admit to the company; and
- (d) the Commissioners shall make compensation to the company for all loss or damage, if any, which may be occasioned by the execution of any of the works authorised by this Act.

(2.) For the purposes of this section the expression "gas, water, or electricity company" includes any person or body of persons supplying gas, water, or electricity.

8.—(1.) All expenses incurred by the Commissioners under this Act shall be defrayed out of money provided by Parliament.

Provision as to expenses, &c. of Commissioners. 15 & 16 Vict. c. 28.

(2.) The provisions of the Commissioners of Works Act, 1852, and any Act amending that Act, shall apply in the case of the acquisition of land by the Commissioners under this Act in like manner as in the case of a purchase under that Act, and any notice, summons, writ, or other document, required to be given, issued, or signed, by or on behalf of the Commissioners, may be given, issued, or signed by the secretary or assistant secretary of the Commissioners and need not be under their common seal.

9. If any person wilfully obstructs any person acting under the authority of the Commissioners in the lawful exercise of the powers vested in them under this Act, he shall for each offence be liable, on summary conviction, to a fine not exceeding five pounds.

Penalty for obstructing Commissioners.

10. This Act may be cited as the National Gallery (Purchase of Adjacent Land) Act, 1901.

Short title.

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FOR

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